WILSON TATENDA MANASE
In his capacity as the executor in the Estate Late
Fiona Dambudzo Shadaya DR No. 202/2009
versus
CLOTILDA CHIDANYIKA
and
MASTER OF THE HIGH COURT N.O
and
REGISTRAR OF DEEDS
and
SHERIFF OF THE HIGH COURT
and
T MURINGANI FAMILY TRUST, DULY REPRESENTED BY
T TIRIVANGANI MURINGANI N.O

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE; 28 May & 8 July 2026

Opposed Matter

M C Nyeperai, for the applicant
N S Ndlovu with N Mahachi, for the 1st respondent
M N Garakara, for the 5th respondent
No Appearance for the 2nd, 3rd and 4th respondents

MAXWELL J:

This is a court application to compel the transfer of an immovable property being Stand No. 554, Mandara Township, Lot 1 of Mandara of the Grange.

FACTUAL BACKGROUND

On 30 July 2025, the applicant filed a court application to compel the transfer of Stand Number 554, Mandara Township, Lot 1 of Mandara of the Grange. In her founding affidavit, the applicant stated that the first respondent approached the deceased seeking an advance of USD 30,000.00 to purchase immovable property. The parties agreed that the first respondent would cede a property of equivalent value as security, leading to the execution of an acknowledgement of debt and the physical delivery of the original title deeds to the deceased. It was further agreed that, should the first respondent fail to repay the advanced

amount by 30 September 2008, the property would be transferred to the deceased. The applicant alleged that the first respondent defaulted, ignored subsequent engagements, became evasive until the deceased's demise, and later fraudulently applied for a replacement lost deed in 2022 to dispose of the property.

The first respondent opposed the application, raising preliminary points of prescription, illegality, and defective relief. She denied ever receiving a loan, stating instead that the parties had engaged in an informal parallel market foreign currency exchange. She claimed she was to provide USD 30,000.00 in exchange for an equivalent premium in Zimbabwean Dollars. She signed the acknowledgement of debt and surrendered her title deeds as a temporary guarantee pending clearance of the Zimbabwean Dollars into her account. However, the local currency was never credited, causing the transaction to fail. She stated that when she requested the return of her deeds, the deceased claimed they were misplaced. Consequently, when she sought to sell the property in 2022, she applied for and obtained a replacement title deed. She averred that she no longer held rights to the property, having sold it to a third party.

The fifth respondent opposed the application as an interested purchaser. It averred that on 2 August 2022, it entered into a valid agreement of sale with the 1st respondent to purchase Stand No. 554, Mandara Township, Lot 1 of Mandara of the Grange, for USD 200,000.00, which was paid in full. Following due diligence, which included the upliftment of a caveat registered under 137/2019 and an application for a replacement deed through its legal practitioners, formal transfer was concluded on 15 April 2025 under Deed of Transfer DT1946/2025. The fifth respondent stated that it took immediate occupation and received no notice of adverse claims until a brief inquiry by the Zimbabwe Anti-Corruption Commission (ZACC) in March 2025. It was joined to these proceedings in October 2025.

PRELIMINARY POINTS

The first and fifth respondents raised several preliminary points, including that the claim does not disclose a cause of action, prescription, illegality and defective relief. The objection by the fifth respondent that the application discloses no cause of action is dispositive. It strikes at the foundation of the matter and must be addressed as a threshold issue. Once this defect is upheld, judicial economy dictates that the remaining objections need not be considered.

THE CLAIM DOES NOT DISCLOSE A CAUSE OF ACTION

Ms. *M N Garakara* raised a separate fundamental preliminary objection that the applicant's founding papers disclose no cause of action for the relief sought. She submitted that the applicant is claiming a transfer of property based entirely on a standard acknowledgement of debt where the title deeds were merely deposited as security for a monetary repayment. She argued that an acknowledgement of debt does not confer any right to compel the transfer of land. In the absence of an executed agreement of sale, no cause of action for specific performance can arise. She contended that a creditor's lawful remedy is to sue for the debt and execute against property, not claim outright ownership. Ms. *Garakara* concluded by highlighting that the applicant had failed to provide any address to this point, whether in her answering affidavit or from the bar.

In the case of *Otto Chimwanengara* v *The Sheriff of the High Court of Zimbabwe (N.O) and Another* HH107-07, page 3, the court defined a cause of action as;

> "A cause of action is a combination of facts that are material for the plaintiff to prove in order to succeed in his action."

See also *Dube* v *Banana* 1998 (2) ZLR 92 (H) at 95, See also *Peebles* v *Dairiboard Zimbabwe (Pvt) Ltd* 1999 (1) ZLR 41 (H) at 45 and *Cavin Chifamba* v *Norbert Mutasa and 2 Others HH 16-08* at page 4.

In light of the above definition, a cause of action represents the entire factual matrix necessary for a claimant to prove, if challenged, to support their right to a judgment. The applicant is petitioning this court for an order of specific performance to compel the transfer of real rights in Stand No. 554, Mandara Township. To sustain a valid cause of action for the transfer of immovable property, the applicant is legally required to plead and establish specific facts. The applicant must prove a valid written agreement of sale that satisfies the strict requirements of the law, the claimant's performance of their reciprocal obligations under that contract, such as payment of the purchase price and an enforceable contractual right to demand a transfer of title. The applicant relies entirely on a written instrument titled an acknowledgement of debt, without establishing these elements.

By definition, an acknowledgement of debt is a liquid document that establishes a personal right. It is a statement by a debtor that they owe a creditor a specific, quantifiable sum of cash. In *casu*, the first respondent owes USD 30,000.00 and she promises to repay it. An acknowledgement of debt does not buy, sell or alienate property. The applicant argues that the first respondent delivered her original title deeds as security and that the parties

agreed that if the USD 30,000.00 was not repaid by 30 September 2008, the property would automatically be transferred to the deceased.

It is of paramount importance to note that the physical delivery of a title deed does not create a real right over property. In our jurisdiction a real right over immovable property as security for a debt can only be lawfully created by the formal registration of a mortgage bond in the Deeds Registry. Holding a debtor's title deeds merely creates a loose personal pledge. It gives the creditor no automatic right to demand transfer of the property upon default.

The contractual clause providing for the automatic transfer of the property to the creditor upon the debtor's default is an example of a *pactum commissorium*. A *pactum commissorium* is an agreement that a creditor may automatically keep a secured asset as their own property if the debtor defaults payment. It is a fundamental principle of Roman-Dutch common law that a *pactum commissorium* is strictly illegal. The clear policy objective of this prohibition is to prevent structural exploitation, ensuring that a creditor cannot seize a high-value asset, such as this Mandara property, subsequently sold for USD 200,000.00 to satisfy a debt of USD 30,000.00, which is a minor fraction of the value of the property.

The forfeiture clause upon which the applicant relies is completely void in law. It cannot generate an enforceable right. A void clause is a legal nonentity, and it cannot give rise to a valid cause of action for specific performance. The applicant has brought a claim for a house when, at law, the underlying document only gave a right to claim USD 30,000.00. The applicant's cause of action was a claim for debt recovery or financial damages, which arose on 30 September 2008 and has long since been extinguished by prescription.

The applicant has offered no response to this fundamental defect, whether in her answering affidavit or from the bar. This silence is an acknowledgement that the defect is incurable. The founding affidavit fails to establish the necessary *facta probanda* to justify a transfer of real rights. The defect goes to the root of the entire litigation. It terminates the case completely. It is a settled principle of law that if a founding affidavit fails to establish the basic factual and legal components necessary to unlock the specific remedy requested, the application is structurally dead from its inception. In such a scenario, it becomes unnecessary and a misuse of judicial economy to evaluate whether a non-existent claim has prescribed under the Prescription Act [*Chapter 8:11*] or whether the transaction was tainted by currency control illegality. One cannot calculate a prescription or evaluate enforceability on a framework that completely lacks a valid cause of action. These preliminary points, though extensively argued, are rendered academic by the dispositive finding that the claim does not

disclose a cause of action. The main application is a legal nullity, cannot be sustained and must be dismissed with costs without further inquiry into the remaining preliminary points.

Accordingly, the following order is made:

1. The point *in limine* that the application discloses no cause of action be and is hereby upheld.
2. The main application be and is hereby dismissed.
3. The applicant, in her capacity as the Executor of the Estate of the Late Fiona Dambudzo Shadaya, shall pay the first and fifth respondents' costs of suit.

MAXWELL J:…….

Maseko Law Chambers, Plaintiff's Legal Practitioners
Samukange Hungwe Attorneys, Defendant's Legal Practitioners